

Policy Title: Development Application and Permit Fees

Policy Number: Part 7, Planning and Land Use; Chapter 4, Fees; Section 2

Type of Policy: Regulatory

Adopting Resolution: CC25-165

References: Zoning Resolution, Land Development Regulation; Resolutions CC94-250, CC94-297, CC94-342, CC95-134, CC95-415, CC95-785, CC99-426, CC99-634, CC99-695, CC00-367, CC00-406, CC01-054, CC01-536, CC02-338, CC04-463, CC06-484, CC09-271, CC09-398, CC10-154, CC10-470, CC19-190, CC20-292

Effective Date: June 24, 2025

Adoption Date: June 24, 2025

Administrative Revision Date: Not applicable

Policy Custodian: Planning and Zoning Division

Purpose: To set fees for development applications and permits.

A. Applicability

1. The fees set forth in the Fee Table shall supersede and replace all other references to the same fees in any other policy or regulation.
2. All Application and Permit Fees are non-refundable, except Miscellaneous Zoning Permit fees for firework stands per the Sale of Fireworks Policy.
3. Any person, firm or corporation failing to obtain the required zoning approval and/or permit(s) as required by the Zoning Resolution, and having submitted an application to correct such violation, shall be required to pay two times the amount of any applicable fee(s).
4. Fees for applications apply to the initial request and the first revision in response to staff recommendations and/or referral comments, depending on the type of review involved. Each additional resubmittal of a survey, plat, written restrictions or other such documents previously red marked and provided to the applicant in response to unresolved comments and recommendations, or submitted by the applicant evidencing new changes, will be charged an additional review fee as specified in the Fee Table.

B. Fee Computation

1. The Director of Planning and Zoning and/or the Director of Development and Transportation may increase/reduce fees in an amount not to exceed a 25% cost recovery based on an annual review of costs and revenues. Fee schedule changes shall be effective January 1 of each year. The Fee Table shall be modified accordingly.

C. Exceptions

1. The application fee for Preliminary Development Applications may be applied toward formal submittal if the formal application is submitted within one (1) year of the Preliminary Development Application.
2. If the proposed development provides affordable housing units, is certified by the Housing, Economic, and Employment Services Division as providing affordable housing, and is sustainable through deed or covenant restrictions, then application and permit fees for rezoning, preliminary and final plat, site development plan and building permit zoning review shall be waived or prorated by the number of affordable units.
3. A written request to waive an application fee or a double fee for an application submitted to correct a violation may be submitted to the Director of Planning and Zoning and or the Director of Development and Transportation. Waiver requests may be approved at the discretion of the Director of Planning and Zoning prior to acceptance of the application.
4. Any fee paid to the county for rezoning for a landfill shall be credited toward the Certificate of Designation application fee.

D. Definitions

1. Miscellaneous permits: See Zoning Resolution.
2. The Administrative Review category includes the research/review of documents for the activities listed below. Minor indicates the required research will take one (1) hour or less. Major indicates the requested research will take more than one (1) hour.
 - a. Legal parcel verification
 - b. Access verification
 - c. Minor revisions to approved construction plans
 - d. Historical zoning verification

e. Address appeals

f. General research/review activities not covered by another review fee.

E. Firework Stand Permit Fees

1. Firework Stand Permit Fees shall be distributed equally to the applicable Fire Protection District or Sheriff's Office for inspection and enforcement services, the Wildland Fire Fund to assist the County in mitigating wildland fires, and the County.